Brazoria County District Court

Cause No. 2026-CV-0013

Kathleen Garcia, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	2-20-26
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence caused or contributed to the occurrence. Plaintiff failed to keep a proper lookout, failed to control speed, and failed to maintain a safe distance behind the vehicle ahead. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and Plaintiff may be barred if that percentage exceeds fifty percent.

Second, Plaintiff's alleged damages were caused, in whole or in part, by a pre-existing condition, a prior injury, or a subsequent unrelated event for which Defendant bears no responsibility.

Third, Plaintiff failed to mitigate damages by not following reasonable medical advice or by delaying treatment, and any recovery must be reduced accordingly.

Defendant reserves the right to amend this answer as discovery proceeds.